
Without Prejudice Correspondence — Proposal for Amicable Discussion

Nandira River Bridge Project — Package NRB-4

Document Reference:	CTR-NRB4-0104
Date:	22-Apr-2022
Contract No.:	NHIA/NRB4/CW/2020-01
From:	Contractor, Commercial Manager, Sagara Constructions Pvt. Ltd.
To:	National Highways Infrastructure Authority
CC:	Meridian Engineering Consultants

Subject: Without Prejudice — Proposal for Amicable Discussion, Retention on Variation VO-NRB4-004

WITHOUT PREJUDICE

Further to Senior Management Meeting SMM-NRB4-004 held 15-Apr-2022, and in accordance with Sub-Clause 20.5, we propose a without-prejudice meeting to discuss whether the matters raised in our Notice of Dissatisfaction CTR-NRB4-0098 can be resolved by agreement, without recourse to the Dispute Adjudication Board.

For the purpose of this discussion only, and without prejudice to our position as set out in CTR-NRB4-0091 and CTR-NRB4-0098, we would be prepared to discuss the treatment of Retention on future Variations prospectively, while reserving our position as to the VTD 29,535 identified in respect of IPC-NRB4-011 specifically.

We propose the meeting take place at the NRB-4 Site Office within four weeks of this letter. This letter and any discussion arising from it are without prejudice and shall not be referred to in any subsequent Dispute Adjudication Board or arbitration proceedings, save as the Parties may otherwise agree.

Regards,
Commercial Manager
Sagara Constructions Pvt. Ltd.